DEMAND IMMEDIATE TRIAL

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the end, is fifty-six years of age. He insisted upon a verdict of "not guilty because insane" and declared that he would never vote for unqualified acquittal with the other eleven jurors on account of the confession signed by Kelly.

During its deliberation of more than forty-four hours, the jury took twenty-two ballots and from beginning to end was eleven to one for acquittal.

Foreman Henry Bruce said Friday afternoon that Brown refused to vote when fourteen of the ballots were taken. "Brown stood for hours at a time and refused to vote," Juror Helmer Walgrean declared. "He said he could never be convinced that Kelly was not speaking the truth when he made his confession and he declared he would stay with the jury for a year if necessary and would not change his mind."

When he was returned to his cell Friday afternoon Kelly expressed surprise at the outcome of the trial.

"I am absolutely innocent," he reiterated, "and I cannot understand why the jury was not unanimous for my acquittal. I don't want to go to Logan. I want to stay here with my friends."

Havner Trial at Logan

Attorney General H. M. Havner will be tried at Logan on the indictment charging him with oppressing the witness, Alice Willard, in connection with the grand jury investigation of the Villisca ax murders which he conducted. Upon application of counsel for the attorney general last Friday morning, Judge Boies granted a change of venue to Harrison county. The date of the trial has not been set, but will probably come during the November term.

In the petition asking that the attorney general be given a trial in another county in the Fifteenth judicial district besides Montgomery county, the attorney general claimed it was impossible for him to secure a fair and impartial trial in this county because of the excitement and prejudice against him here.

Mr. Havner was indicted in connection with the grand jury investigation which resulted in the indictment of Rev. Kelly for the Villisca ax murders In the petition filed Friday morning it is set forth:

"That immediately after this indictment public meetings were held in Montgomery county and elsewhere in southwestern Iowa and in Omaha at which meetings the acts and conduct of this defendant in connection with said grand jury investigation were freely and publicly discussed, and unwarranted and unjust and false accusations and charges were made against defendant for the purpose of exciting the public mind and creating an unjust, unwarranted and false prejudice against the defendant in Montgomery county."

The petition alleges thirty-four such meetings to have been held and that "at each and every one of said meetings public addresses have been delivered in which this defendant has been referred to by name and been held up to criticism, censure and denunciation."

A copy of the famous "100 questions" directed at Attorney General Havner by J. N. Wilkerson, is attached to the petition, and the allegation set forth that the questions are distributed at mass meetings. It is further claimed that at such meeting "a paper purporting to be an affidavit made by said Alice Willard whom this defendant is charged in this case with having oppressed, was read, commented on and discussed."

The indictment against Attorney General Havner was returned September 4, the day of the opening of the Kelly murder trial. Public meetings at which Mr. Havner has been denounced have been held since.

J. M. Parsons of Des Moines, Robert Healey of Fort Dodge and Lewis Miles of Corydon are Mr. Havner's attorneys.

The Red Oak Meeting

The following account of the meeting in Red Oak last Saturday is taken from the Council Bluffs Nonpareil of Sunday:

Red Oak, Saturday, Sept. 29.—"When the name of Havner appears on the ballot, my friends, remember that slogan, 'Slay Utterly.'" This was the parting shot J. N. Wilkerson hurled at a mixed audience of 2,000 Montgomery county citizens who packed the Beardsley theatre here in Red Oak this afternoon at a called meeting of the Iowa Protective association. Wilkerson for over an hour had been giving vent to some of his opinions on various quips and turns of the Villisca ax-murder investigation. From the Kelly trial, which closed yesterday, he drew for many of his thoughts and for one moment did not overlook Attorney General Havner, whom he denounced in no uncertain terms.

Before 4 o'clock, the hour set for the meeting to begin, the street in front of the theatre was jammed with citizens waiting to get in. A moving picture show was in progress inside. Within five minutes after the crowd was let in every seat in the theatre was occupied and standing room was at a premium.

Before the curtain arose for the "show" some one way up in the gallery shouted:

"Where's Havner?"

Another voice answered:

"Where's Tom Brown?" Mr. Brown is the juror who "hung" the Kelly murder jury and prevented his acquittal.

Stage Carefully Set

The stage was carefully set for the raising of the curtain. It revealed a score or more of the most active workers in the Protective Association occupying seats across the stage. To the left and right, respectively, of a small table in the center of the stage sat Joe Stillinger, father of two of the lilttle girls slain in the Villisca tragedy, and John Montgomery, father of the murdered Mrs. Joe Moore.

Mr. Stillinger presided. After briefly announcing that efforts will be made to make the Iowa Protective association state wide in its activities, Mr. Wilkerson was introduced by Mr. Stillinger.

Wilkerson referred to the Kelly trial as "the recent farce commonly called a trial." State's counsel were called "wise men who saw fit to conduct this wonderful trial."

Wilkerson said the Iowa Protective association was an "organ that will have to be reckoned with by crooked politicians."

Even Attack Sheriff Dunn

Sheriff Bob Dunn of Montgomery county came in for some sarcasm before Wilkerson had gone into his speech very far. Wilkerson was recalling the last mass meeting held in Red Oak three months ago when he was enjoined from speaking. Sheriff Dunn served the injunction on him at that time from the stage of the theatre. After indulging in a few personalities directed at the sheriff Wilkerson said "Bobby will find the difference when voting time comes."

Wilkerson said the "people's rights were invaded by the attack on him." "I haven't heard of any attempts to enforce the anti-Wilkerson law nor I haven't met any bald-headed sheriffs with an injunction," the detective declared in telling of thirty-four mass meetings he has held recently. He claims to have addressed 35,000 people.

Wild hoots and howles greeted Wilkerson's description of T. C. Brown as "the only nut on that jury." Wilkerson didn't mince his words a bit in telling what he thought about Mr. Brown's position. In fact, the detective admitted he was a "plain spoken individual" and nobody will deny it.

"I know I'm persona non grata to a bunch of politicians," Wilkerson declared. "They recognize in Wilkerson the most dangerous antagonist they ever met." Wilkerson insisted he stood for a mighty principle, modestly confessing, however, that "Wilkerson alone is no more than a flotsam on the face of the ocean."

Wilkerson Mimics Havner

Wilkerson pleased his crowd immensely when he paraded back and forth across the stage, mimicing Attorney General Havner. Not only did Wilkerson seek to mimic the attorney general's actions, but also his manner of speaking. He flayed Mr. Havner in bitter sarcasm for what he has done in connection with the Villisca murder probe and also for his recent move in taking a change of venue for his trial from Montgomery county. "Why, you son-of-a-gun, justice is what you don't want." Wilkerson cried to the imaginary attorney general. Wilkerson grew dramatic in describing the alleged "third degree" given Kelly at Logan.

County Attorney Wenstrand came under Wilkerson's lash of words for not resisting Havner's motion for a change of venue. Wilkerson said the "imported judge," referring to Judge Boies, who conducted the Kelly trial, had no right to sign the order for Havner's change of venue as he was sent here for the Kelly trial only. "They didn't tell him to go down there and dibble and dabble in our affairs," Wilkerson said.

"Are we going to stand for these things and do nothing about it?" Wilkerson cried. "The time has come for us to act. Think you not the Iowa Protective association ought to exist?" Wilkerson qualified his statement by saying, "I'm not appealing to your passion."

NO. 7 KILLS W. H. HEWITT

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were held Tuesday in that city. Burial was made in the Massena cemetery.

W. H. Hewitt was known to many of the older residents of Villisca and vicinity. Until he was a boy of sixteen years he lived in this community. His parents were residents of the community north of Villisca. He was a little more than fifty-six years of age at the time of the accident and had made his home in Massena for sixteen years. In that city he and his son were the distributors for the Pennsylvania Consumers Oil Company.

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President F. L. Ingman of the local Commercial Club announces that there will be a regular meeting Thursday evening of this week at 7:30 at the armory club rooms. A number of matters of business are to be transacted at that time.

Mr. and Mrs. N. O. Adamson and two daughters of Shenandoah spent Saturday and Sunday in Villisca with relatives in the T. E. Wallace home. They also visited at Nodaway with Mrs. Adamson's mother, Mrs. Timer man, and with other relatives and friends there.

Mrs. Hattie Turnholm of this city has received the news of the death of her twin sister, Mrs. Maria Charlotta Hall, at Ong, Nebraska. The deceased was seventy-five years of age at the time of her death. A daughter, Mrs. A. L. Burr, resides at Red Oak. Mrs. Ekdahl had a number of acquaintances in Villisca who will regret to learn of her death.

NOTICE—All assessments for oiling the streets in Villisca must be paid to the city clerk on or before October 10, 1917, will be returned to the county auditor to be placed on the tax books with penalty attached. G. B. EXTON, City Clerk.

Ben Moore has sold about twenty acres of his farm one mile southeast of Villisca to Chas. Eastman of near Red Oak. The consideration was $6,000. Mr. Davie made the deal. Mr. Eastman recently sold his farm of one hundred and twenty acres near Guss Milton Dorsett of near Iveyville, consideraion in this transaction being $135 the acre.

Rev. J. H. Beveridge and Mrs. Beveridge of Woodward, Iowa, arrived in Villisca Sunday noon. They have been visiting in Villisca with Rev. Beveridge's father, Samuel Beveridge. Monday Rev. Beveridge began a four weeks' evangelistic campaign at the Fourth Grove Methodist church south of Villisca and will be assisted in the work by Mrs. Beveridge.

Mr. and Mrs. Fred Haxthausen of Omaha drove to Villisca Sunday for a visit in this city in the Henry Higgins home, near Villisca in the Fred McCrea home and in and near Villisca with other relatives and friends. They returned to Omaha Monday and were accompanied there by Miss Ruby McCrea who will visit for a few days with relatives and friends.

Mr. and Mrs. Herb Watts of Nodaway arrived in Villisca Saturday evening from Omaha. Mr. Watts had been in a Methodist hospital in that city for two weeks recovering from an operation for appendicitis. Mrs. Watts came to Omaha to join him and accompany him on the return trip. But they went to their home in Nodaway. Mr. Watts is still quite weak from his recent sickness, but is improving gradually.

Harley Willis returned to Villisca Monday noon after spending six weeks working in the harvest fields of South Dakota. He spent most of the time at and near Dolan, South Dakota. Harvey reports that the crops in South Dakota are good and that wages for harvest hands are high. Mr. Smith, who went to Dakota with him, remained for a longer time and plans to return to this community in about three weeks.

Mr. Harris of Villisca succeeds A. Collier as wire chief for the Villisca telephone company in Clarinda, Mr. Collier having resigned the position for other employment. Mr. Harris will continue to be the telephone company's wire chief in Villisca and his family make their home in Clarinda. They have moved into the house of J. B. M. Pruit on North Main street in this city. Mr. Harris' family consists of his wife and their daughter, two years old.—Clarinda Herald.

Mrs. Arthur Farquhar and daughters Ella, Mae and Emma Farquhar came to Villisca Sunday from Red Oak to spend the day with their brother in the Geo. Farquhar home. Arthur Farquhar is a brother of George Farquhar and Misses Ella and Emma are auditor and assistant auditor of Audubon county, are Mr. and Mrs. sisters. Miss Emma Farquhar is a cousin and had been visiting in Audubon. Her home is in Akron, Ohio, and she remained in Villisca for a few days to visit relatives before going to Lincoln, Nebraska, for a further visit with friends.

Mrs. Ed Day of West Main street in this city are this week entertaining a number of Mrs. Day's relatives at the annual reunion of the Day family. Four brothers were present on the occasion. They are: Hebron, Nebraska; Samuel of Kiowa, Kansas; Johnathan of Macon, Missouri; and Frank of University Place, Lincoln, Nebraska. Other relatives who were present are Mrs. M. E. Mendenhall and son of Hebron, Nebraska; Herbert Brown and son, daughter, Miss Edrah, of Nebraska; and Andrew